



Bill Number: S.B. 1566

Petersen #1 Floor Amendment

Reference to: GOVERNMENT Committee Amendment

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Allows a city or town, if the Attorney General finds that a city or town violated the prohibition on maliciously delaying licensing time frames for single-family residential construction, to bring an action in the court with appropriate jurisdiction to challenge the finding of a malicious delay.
2. Allows a county, if the Attorney General or a county attorney finds that a county violated the prohibition on maliciously delaying a response to a license, approval or permit, to bring an action in the court with appropriate jurisdiction to challenge the finding of a malicious delay.
3. Deems that a plaintiff who files a complaint in superior court that asserts a property right claim or that seeks review of a state or local land use determination is entitled to expedited judicial review of the claim.
4. Requires the court, within 10 calendar days after filing the complaint, to conduct an initial case management conference with the parties to establish an expediated schedule for discovery, briefings and hearings.
5. Requires the court to consider and rule on all motions for summary judgement as soon as practicable after the case management conference, absent a finding of good cause.
6. Removes the prohibition on the state or a state agency maliciously delaying a response to a license, approval or permit or any similar application or request.
7. Defines *land use determination* as any decision, order or action of a government agency, political subdivision of the state or hearing officer that directly affects the permissible use of real property, including zoning decisions, conditional use permits, variances, site plan approvals and exactions.
8. Defines *property right claim* as a claim that a government action or regulation has taken, damaged or otherwise impaired a legally protected property right, including takings, regulatory takings and similar constitutional or statutory claims.
9. Adds a statement of legislative findings.
10. Makes technical and conforming changes.

PETERSEN #1 FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1566
(Reference to GOVERNMENT Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{[Orange lowercase strikeout in double curly brackets]}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
>>Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~>>Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 9, chapter 4, article 8, Arizona Revised Statutes,
3 is amended by adding section 9-500.54, to read:

4 9-500.54. Malicious delay; attorney general; violation; civil
5 penalty; definitions

6 A. NOTWITHSTANDING ANY OTHER LAW, A CITY OR TOWN IN THIS STATE MAY
7 NOT MALICIOUSLY DELAY ~~[A RESPONSE TO A LICENSE, APPROVAL OR PERMIT OR ANY~~
8 ~~SIMILAR APPLICATION OR REQUEST]~~[ADOPTED LICENSING TIME FRAMES PURSUANT TO
9 SECTION 9-835 FOR SINGLE-FAMILY RESIDENTIAL CONSTRUCTION OR A RESPONSE TO
10 AN APPLICATION FOR SINGLE-FAMILY RESIDENTIAL CONSTRUCTION].

11 B. THE ATTORNEY GENERAL~~[, BASED ON A WRITTEN COMPLAINT BY A~~
12 PROPERTY OWNER WITH AN APPLICATION BEFORE A CITY OR TOWN.] MAY ENFORCE
13 THIS SECTION.

14 C. [FOLLOWING AN INVESTIGATION AND FINDINGS BY THE ATTORNEY
15 GENERAL.] A CITY OR TOWN IN THIS STATE THAT ~~[VIOLATES]~~[IS FOUND TO HAVE
16 VIOLATED] THIS SECTION [BY CLEAR AND CONVINCING EVIDENCE] IS SUBJECT TO A

1 CIVIL PENALTY OF \$5,000 PER VIOLATION [REGARDLESS OF THE DURATION OF THE
2 DELAY].

3 [D. THIS SECTION DOES NOT MODIFY THE AUTHORITY OF A BUILDING CODE
4 OFFICIAL TO WITHHOLD A CERTIFICATE OF OCCUPANCY IN ACCORDANCE WITH A
5 CITY'S OR TOWN'S ADOPTED CODES AND ORDINANCES.]

6 {{E. IF THE ATTORNEY GENERAL FINDS THAT A CITY OR TOWN VIOLATED
7 THIS SECTION, THE CITY OR TOWN MAY BRING AN ACTION IN A COURT WITH
8 APPROPRIATE JURISDICTION TO CHALLENGE THE FINDING OF A MALICIOUS DELAY.}}

9 [D.] [{{E.}}] {{E.}} FOR THE PURPOSES OF THIS SECTION[.]:

10 1. "APPLICATION" MEANS A SITE PLAN, DEVELOPMENT PLAN, LAND
11 DIVISION, LOT LINE ADJUSTMENT, LOT TIE, PRELIMINARY PLAT, FINAL PLAT, PLAT
12 AMENDMENT OR BUILDING PERMIT FOR SINGLE-FAMILY RESIDENTIAL CONSTRUCTION.

13 2. "MALICIOUS":

14 [1.] [(a)] MEANS ACTING [IN BAD FAITH OR WITH SPECIFIC INTENT TO
15 OBSTRUCT APPROVAL OF A LICENSE, APPROVAL OR PERMIT OR ANY SIMILAR
16 APPLICATION OR REQUEST BY IMPOSING REQUIREMENTS NOT SPECIFICALLY
17 AUTHORIZED BY CODE, ORDINANCE OR STANDARD OR ENGAGING IN SELECTIVE
18 ENFORCEMENT, REPEATED UNEXPLAINED DELAYS OR ACTIONS TAKEN WITHOUT A
19 LEGITIMATE HEALTH, SAFETY OR PLANNING CONCERN][WITH SPECIFIC INTENT TO
20 OBSTRUCT APPROVAL OF AN APPLICATION BY IMPOSING REQUIREMENTS NOT
21 SPECIFICALLY AUTHORIZED BY CODE, ORDINANCE, STANDARD OR OTHER LEGAL
22 REQUIREMENTS, REPEATED UNEXPLAINED DELAYS OF MORE THAN TWICE THE CITY'S OR
23 TOWN'S ADOPTED LICENSING TIME FRAME PURSUANT TO SECTION 9-835 FOR
24 SINGLE-FAMILY RESIDENTIAL CONSTRUCTION OR DELAYS RESULTING FROM OTHER
25 PENDING APPLICATIONS BY THE SAME APPLICANT].

26 [2.] [(b)] DOES NOT INCLUDE ANY DELAYS DUE TO RESOURCE
27 CONSTRAINTS, [DELAYS CAUSED BY THE APPLICANT OR A THIRD PARTY.] GOOD FAITH
28 ERRORS OR ENFORCEMENT OF [IDENTIFIED CODES,] [ADOPTED TECHNICAL CODES,
29 INCLUDING FIRE, BUILDING, TRANSPORTATION AND TRAFFIC, UTILITIES FACILITIES
30 AND PUBLIC NUISANCE CODES.] ORDINANCES OR STANDARDS.

31 Sec. 2. Title 11, chapter 2, article 4, Arizona Revised Statutes,
32 is amended by adding section 11-269.31, to read:

33 11-269.31. Malicious delay; attorney general; county
34 attorney; violation; civil penalty; definition

35 A. NOTWITHSTANDING ANY OTHER LAW, A COUNTY IN THIS STATE MAY NOT
36 MALICIOUSLY DELAY A RESPONSE TO A LICENSE, APPROVAL OR PERMIT OR ANY
37 SIMILAR APPLICATION OR REQUEST.

38 B. THE ATTORNEY GENERAL OR COUNTY ATTORNEY MAY ENFORCE THIS
39 SECTION.

40 C. A COUNTY IN THIS STATE THAT VIOLATES THIS SECTION IS SUBJECT TO
41 A CIVIL PENALTY OF \$5,000 PER VIOLATION.

42 {{D. IF THE ATTORNEY GENERAL OR THE COUNTY ATTORNEY FINDS THAT A
43 COUNTY VIOLATED THIS SECTION, THE COUNTY MAY BRING AN ACTION IN A COURT
44 WITH APPROPRIATE JURISDICTION TO CHALLENGE THE FINDING OF A MALICIOUS
45 DELAY.}}

46 {{D.}} {{E.}} FOR THE PURPOSES OF THIS SECTION, "MALICIOUS":

47 1. MEANS ACTING IN BAD FAITH OR WITH SPECIFIC INTENT TO OBSTRUCT
48 APPROVAL OF A LICENSE, APPROVAL OR PERMIT OR ANY SIMILAR APPLICATION OR
49 REQUEST BY IMPOSING REQUIREMENTS NOT SPECIFICALLY AUTHORIZED BY CODE,

1 ORDINANCE OR STANDARD OR ENGAGING IN SELECTIVE ENFORCEMENT, REPEATED
2 UNEXPLAINED DELAYS OR ACTIONS TAKEN WITHOUT A LEGITIMATE HEALTH, SAFETY OR
3 PLANNING CONCERN.

4 2. DOES NOT INCLUDE ANY DELAYS DUE TO RESOURCE CONSTRAINTS, GOOD
5 FAITH ERRORS OR ENFORCEMENT OF IDENTIFIED CODES, ORDINANCES OR STANDARDS.

6 ~~≤Sec. 3. Title 41, chapter 4, article 1, Arizona Revised Statutes,~~
7 ~~is amended by adding section 41-710.04, to read:~~

8 ~~41-710.04. Malicious delay; attorney general; violation;~~
9 ~~civil penalty; definition~~

10 ~~A. NOTWITHSTANDING any other law, This state or an agency of this~~
11 ~~state may not maliciously delay a response to a license, approval or~~
12 ~~permit or any similar application or request.~~

13 ~~B. The attorney general may enforce this section.~~

14 ~~C. THIS STATE OR AN AGENCY of THIS STATE that violates this section~~
15 ~~is subject to a civil penalty of \$5,000 per violation.~~

16 ~~D. For the purposes of this section, "Malicious":~~

17 ~~1. Means acting in bad faith or with specific intent to obstruct~~
18 ~~approval of a license, approval or permit or any similar application or~~
19 ~~request by imposing requirements not specifically authorized by code,~~
20 ~~ordinance or standard or engaging in selective enforcement, repeated~~
21 ~~unexplained delays or actions taken without a legitimate health, safety or~~
22 ~~planning concern.~~

23 ~~2. Does not include Any delays due to resource constraints, good~~
24 ~~faith errors or enforcement of identified rules or standards.≥≥~~

25 ~~≤Sec. 3. Title 12, chapter 8, article 2.1, Arizona Revised~~
26 ~~Statutes, is amended by adding section 12-1139, to read:~~

27 ~~12-1139. Land use claims; expedited review; definitions~~

28 ~~{A. A PLAINTIFF THAT FILES A COMPLAINT IN SUPERIOR COURT THAT~~
29 ~~ASSERTS A PROPERTY RIGHT CLAIM OR THAT SEEKS REVIEW OF A STATE OR LOCAL~~
30 ~~LAND USE DETERMINATION IS ENTITLED TO EXPEDITED JUDICIAL REVIEW OF THE~~
31 ~~CLAIM.~~

32 ~~B. WITHIN TEN CALENDAR DAYS AFTER THE FILING OF THE COMPLAINT, THE~~
33 ~~COURT SHALL CONDUCT AN INITIAL CASE MANAGEMENT CONFERENCE WITH THE PARTIES~~
34 ~~TO ESTABLISH AN EXPEDITED SCHEDULE FOR DISCOVERY, BRIEFING AND HEARINGS.~~

35 ~~C. UNLESS OTHERWISE ORDERED FOR GOOD CAUSE, ALL FACT DISCOVERY IN~~
36 ~~THE ACTION SHALL BE COMPLETED AS EXPEDITIOUSLY AS POSSIBLE AFTER THE~~
37 ~~INITIAL CASE CONFERENCE.~~

38 ~~D. THE COURT SHALL CONSIDER AND RULE ON ALL MOTIONS FOR SUMMARY~~
39 ~~JUDGMENT OR OTHER DISPOSITIVE MOTIONS AS SOON AS PRACTICABLE.~~

40 ~~E. THE COURT SHALL SET A TRIAL OR FINAL HEARING DATE AS SOON AS~~
41 ~~PRACTICABLE AFTER THE CASE MANAGEMENT CONFERENCE, ABSENT A FINDING OF GOOD~~
42 ~~CAUSE.~~

43 ~~F. AN APPEAL TO THE COURT OF APPEALS FROM A SUPERIOR COURT JUDGMENT~~
44 ~~IN AN ACTION DESCRIBED IN SUBSECTION A OF THIS SECTION IS ENTITLED TO A~~
45 ~~SCHEDULING PREFERENCE ON THE APPELLATE DOCKET, AND THE COURT OF APPEALS~~
46 ~~SHALL EXPEDITE BRIEFING SCHEDULES AND ORAL ARGUMENT CONSISTENT WITH THE~~
47 ~~INTERESTS OF JUSTICE UNLESS THE COURT FINDS FOR GOOD CAUSE THAT EXPEDITED~~
48 ~~REVIEW IS NOT FEASIBLE.~~

1 G. A PARTY MAY PETITION FOR SPECIAL ACTION RELIEF IN THE COURT OF
2 APPEALS OR SUPREME COURT AND SUCH ACTIONS SHALL RECEIVE EXPEDITED
3 PROCESSING.

4 H. FOR THE PURPOSES OF THIS SECTION:

5 1. "LAND USE DETERMINATION" MEANS ANY DECISION, ORDER OR ACTION OF
6 A GOVERNMENT AGENCY, POLITICAL SUBDIVISION OF THIS STATE OR HEARING
7 OFFICER THAT DIRECTLY AFFECTS THE PERMISSIBLE USE OF REAL PROPERTY,
8 INCLUDING ZONING DECISIONS, CONDITIONAL USE PERMITS, VARIANCES, SITE PLAN
9 APPROVALS AND EXACTIONS.

10 2. "PROPERTY RIGHT CLAIM" MEANS A CLAIM THAT A GOVERNMENT ACTION OR
11 REGULATION HAS TAKEN, DAMAGED OR OTHERWISE IMPAIRED A LEGALLY PROTECTED
12 PROPERTY RIGHT, INCLUDING TAKINGS, REGULATORY TAKINGS AND SIMILAR
13 CONSTITUTIONAL OR STATUTORY CLAIMS.}}>>

14 <<Sec. 4. Legislative findings

15 {{The legislature finds and declares that the purpose of section
16 12-1139, Arizona Revised Statutes, as added by this act, is to ensure that
17 actions in which a plaintiff asserts a property right or seeks judicial
18 review of a state or local land use determination are resolved in a timely
19 and efficient manner to prevent undue harm resulting from prolonged
20 uncertainty.}}>>

21 Enroll and engross to conform

22 Amend title to conform

WARREN PETERSEN

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